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PART II

Statutory Notifications (S. R. O.)

GOVERNMENT OF PAKISTAN

CABINET SECRETARIAT

(Establishment Division)

NOTIFICATIONS

Rawalpindi, the 11th April, 1982

S. R. O. 334 (I) 82.—In exercise of the powers conferred by section 8 of the Service Tribunals Act, 1973 (LXX of 1973), the Federal Government is pleased to direct that the following amendments shall be made in the Service Tribunals (Qualifications of Members) Rules, 1974, namely:—

2. In the aforesaid Rules, in rule 2,—

(i) after the words “period of”, the commas and words “or for periods aggregating”, shall be inserted; and

(ii) the following Explanation shall be added at the end, namely:—

“Explanation.—In computing the period during which a person has held an appointment or post or has been an advocate or legal practitioner, there shall be included any period during which he has held an appointment or post after he became an advocate or legal practitioner or, as the case may be, the period during which he has been an advocate or legal practitioner after having held the appointment or post”.

[No. 1/6/82-ST/D-4.]

MAQBOOL AHMED SHEIKH,
Joint Secretary.

(469)

Price : Ps. 19

Provided that where in an appeal or revision, the Bench is of opinion that the sentence may be enhanced to imprisonment for more than fourteen years or death, such appeal or revision, as the case may be, shall be heard by a larger Bench to be nominated by the Chief Justice.”; and

(5) after rule 16, the following new rule shall be added, namely :—

“16A. *When Court suo moto takes up a matter.*—(1) The Court shall prepare a list of the laws which it would like to examine on its own motion for determining whether they or any of their provisions are repugnant to the Injunctions of Islam as contained in the Holy Quran and Sunnah.

(2) Where the Court decides to so examine any such law or provision as is mentioned in the list prepared under sub-rule (1), it shall cause a notice to be issued to the public in general and to such Bar Associations, religious organisations and institutions, jurisconsults and other persons as it may deem necessary inviting their views on the matter referred to in sub-rule (1), supported by the Holy Quran, the traditions of the Holy Prophet and the juristic opinions, if any.

(3) The notice referred to in sub-rule (2) shall specify the date by which the views should be sent to the Court and the dates on which the Court is likely to hear the matter.

(4) A notice of the dates on which the Court is likely to hear the matter shall also be served on the Attorney-General for Pakistan, Deputy Attorney-General appointed by the Government for Shariat petitions, Standing Counsel and, if such law is a Provincial subject, the Advocate-General of the Province concerned.

(5) In determination of a question taken up by the Court under this rule, the provisions relating to disposal of a petition shall, *mutatis mutandis*, apply.”

By Order of the Court.

S. A. NIZAMI,
Registrar.

(104)